

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                  |                           |                                                        |                                    |                                            |
|---------------------------------------------------|--------------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|--------------------------------------------|
| Investigator:<br>Simon Wang                       | Team:<br>Team # 1                                | CCRB Case #:<br>200816486 | <input checked="" type="checkbox"/> Force              | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                                  |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 11/10/2008 10:00 PM   | Location of Incident:<br>the front of § 87(2)(b) | Precinct:<br>73           | 18 Mo. SOL<br>5/10/2010                                | EO SOL<br>5/10/2010                |                                            |
| Date/Time CV Reported<br>Tue, 11/11/2008 12:00 AM | CV Reported At:<br>IAB                           | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 11/14/2008 10:57 AM |                                    |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POF Tiffany Bruce | 16044  | 944211 | PSA 2   |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM Christoph Kerbis    | 04228     | 944697 | PSA 2    |
| 2. POM Jonathan Rothenberg | 23648     | 946198 | PSA 2    |

| Officer(s)          | Allegation                                                                             | Investigator Recommendation |
|---------------------|----------------------------------------------------------------------------------------|-----------------------------|
| A.POF Tiffany Bruce | Force: PO Tiffany Bruce used physical force against § 87(2)(b)                         | § 87(2)(b)                  |
| B.POF Tiffany Bruce | Abuse: PO Tiffany Bruce threatened to arrest § 87(2)(b)                                | § 87(2)(b)                  |
| C.POF Tiffany Bruce | Abuse: PO Tiffany Bruce refused to provide her name and/or shield number to § 87(2)(b) | § 87(2)(b)                  |

### Synopsis

On November 11, 2008, § 87(2)(b) filed the following complaint with IAB. The CCRB received this complaint via referral from IAB reference number 08-51969 on November 14, 2008. On November 10, 2008, at approximately 10:00pm, § 87(2)(b) walked out of her apartment located at § 87(2)(b) in Brooklyn and saw her son and two of his friends being arrested by police officers. § 87(2)(b) approached the officers to ask what had occurred. PO Tiffany Bruce of PSA 2 allegedly pushed § 87(2)(b) causing her to twist her ankle (**Allegation A**). She then allegedly told § 87(2)(b) that she would be arrested if she did not get out of the way (**Allegation B**). § 87(2)(b) asked PO Bruce for her badge number, but she allegedly refused (**Allegation C**).

PO Bruce denied all of § 87(2)(b)'s allegations. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

### Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female who is 5'0" in height, weighs 190 pounds and has black hair and brown eyes.

On November 11, 2008, § 87(2)(b) was interviewed at § 87(2)(b) by Sgt. Michael King and Sgt. Gerson of IAB. On December 15, 2008, § 87(2)(b) was interviewed in her home at § 87(2)(b) in Brooklyn. § 87(2)(g)

§ 87(2)(b)

On November 10, 2008, at approximately 10:00PM, § 87(2)(b) was in her apartment at § 87(2)(b) in Brooklyn when a neighbor knocked on her door. The neighbor told her that her son, § 87(2)(b) was being arrested. § 87(2)(b) went downstairs to the outside of her apartment building and saw approximately five police officers in blue uniforms standing in front of a bench where three young males, including her son, were seated. In her IAB statement, § 87(2)(b) stated that § 87(2)(b) was already handcuffed, prone on the ground. § 87(2)(b) believed the two other young males were friends of her son. One of the males was wearing a black 8-ball jacket, while her son was wearing a beige jacket with a hood. Four white officers grabbed the two young males from the bench, placed them onto the ground and began to handcuff them. § 87(2)(b) was still seated on the bench. The area outside of the apartment building was not particularly well lit, and § 87(2)(b) had difficulty seeing some of the officers' faces. There were seven or eight other officers on the scene who were not involved in arresting the males. There were other civilians outside. § 87(2)(b) also heard voices calling from the windows of her apartment building.

§ 87(2)(b) approached PO Tiffany Bruce of PSA 2 (who was identified through investigation, and described as a black female, 5'0" tall, in uniform) to ask what was going on. PO Bruce and § 87(2)(b) were approximately ten feet away from her son, and PO Bruce had not been involved in making the arrests. PO Bruce told § 87(2)(b) to move back and immediately pushed her on the chest with both hands, causing § 87(2)(b) to stumble back. As she stumbled, she twisted her ankle. There was no immediate pain to her ankle, but § 87(2)(b) began to limp. § 87(2)(b) said to PO Bruce, "Excuse me miss!" PO Bruce replied by saying, "Get out of my face or you will be arrested too." § 87(2)(b) asked her for her shield number. PO Bruce scoffed and walked away. In her IAB interview, § 87(2)(b) made no mention of PO Bruce's threat of arrest or her request for PO Bruce's shield number.

§ 87(2)(b) then noticed that all of the officers were covering their shield numbers with what may have been black tape. § 87(2)(b) was then placed on the ground and arrested. § 87(2)(b) went around PO Bruce and approached PO2 (described as a white male) who had been involved in arresting the males on the bench. § 87(2)(b) asked PO2 what was happening. PO2 said, "Mother, you better move on, because we're taking him in." § 87(2)(b) asked PO2 where her son was being taken. PO2 did not

respond and walked away. § 87(2)(b) was placed inside a marked patrol car and driven away. An unidentified civilian shouted to § 87(2)(b) "Go to 73<sup>rd</sup>."

§ 87(2)(b) went to the PSA 2 stationhouse (she believed she was at the 73<sup>rd</sup> Precinct) and spoke to an officer in a white uniform. The officer explained to her that her son would be released if he did not have any outstanding warrants. § 87(2)(b) was released that night with two summonses § 87(2)(a) 160.50

On the morning of § 87(2)(b), § 87(2)(b) began to experience pain in her ankle. She made a report to IAB and went to § 87(2)(b) that morning where she was X-rayed. It was determined that § 87(2)(b) had a sprained ankle. She was given a bandage for her foot, a prescription for painkillers, and § 87(2)(b). IAB detectives came to § 87(2)(b) and interviewed her there. The IAB report indicated that she was interviewed at 11:00 PM on § 87(2)(b)

### **Results of Investigation**

#### **Witness Statements**

§ 87(2)(b)  
On § 87(2)(b), § 87(2)(b) was interviewed at § 87(2)(b) by Sgt. King and Sgt. Gerson of IAB. § 87(2)(b) failed to appear for two scheduled appointments at the CCRB, respectively on January 28, and February 18, 2009.

On November 10, 2008, at approximately 10:00 PM, § 87(2)(b) was stopped along with another unidentified male in relation to a report of a robbery. § 87(2)(b) came outside to find out why § 87(2)(b) was being detained. An unidentified officer placed § 87(2)(b) in handcuffs because he disobeyed their order not to speak to his mother. § 87(2)(b) saw an unidentified female officer push § 87(2)(b). § 87(2)(b) was then taken to a holding cell and eventually released with summonses for § 87(2)(a) 160.50

#### **Additional attempts to contact witnesses**

On November 10, 2008, at approximately 9:13 PM, § 87(2)(b) called 911 to report that a black male wearing a black 8-ball jacket, a black baseball cap, and blue or grey sneakers was committing a robbery at § 87(2)(b) in Brooklyn. On January 7, 2009, the undersigned spoke to § 87(2)(b) by phone. She stated that she did not witness what occurred after police officers approached the suspect she identified.

On November 10, 2008, at approximately 9:27 PM, § 87(2)(b) called 911 to report that approximately 20 uniformed officers attempting to arrest several males at the park area of § 87(2)(b) require assistance because two to three males being arrested were fighting back. Before disconnecting, she then stated that the officers appeared to have control of the situation. From January 7, 2009 to January 21, 2009, the undersigned made several unsuccessful attempts to contact § 87(2)(b) by phone. It was determined that § 87(2)(b) called 911 from her home telephone, and therefore witnessed the incident from her home.

#### **PO Tiffany Bruce**

##### **Memo Book**

PO Bruce noted in her memo that on November 10, 2008, at approximately 9:11 PM, there was a report of a robbery in progress in front of § 87(2)(b) in Brooklyn. The suspect was described as a black male wearing a black "eight-ball" cap. At 9:20PM, PO Bruce conducted a stop question and frisk of a black female in front of § 87(2)(b). Her name was § 87(2)(b) her date of birth was § 87(2)(b). She resided at § 87(2)(b). At 9:25 PM, PO Bruce prepared a UF 250 report. At 9:26 PM, PO Bruce was involved in a verbal argument with an unidentified black female. PO Bruce told her that she needed to back away from the area. The female told PO Bruce to back up and attempted to push her. PO Bruce walked away from her.

### **CCRB Statement**

On May 14, 2009, PO Tiffany Bruce of PSA 2 was interviewed at the CCRB. PO Bruce is a § 87(2)(b)-old black female, who is 5 feet 3 inches tall and weighs 153 pounds. She has brown hair and brown eyes. She has been a member of the NYPD since July of 2007. On November 10, 2008, PO Bruce was assigned to Impact Post 447.

On November 10, 2008, at approximately 9:11 PM, PO Bruce received a report on her radio of a robbery in progress in front of § 87(2)(b) in Brooklyn. The dispatcher provided a description of a black male suspect with a black jacket. PO Bruce arrived at the front of § 87(2)(b) which is a courtyard area. § 87(2)(b) and § 87(2)(b) share the same courtyard and face each other. When PO Bruce arrived at the scene she saw PO Peter Michael, who was assigned to the same impact post as PO Bruce, but is assigned to the night shift. PO Michael and two other officers were standing near a bench with three black males, one of whom matched the description of the robbery suspect. The officers from the night shift placed the males in handcuffs while they investigated further. There was no need for PO Bruce to participate since the other officers already had the situation under control, hence she only stood by and observed.

Approximately ten minutes later, § 87(2)(b) emerged from one of the buildings and ran towards the three suspects shouting and screaming. PO Bruce ascertained that § 87(2)(b) was the mother of one of the suspects. PO Bruce prevented § 87(2)(b) from approaching the suspects by telling her not to approach and informing her of the situation. § 87(2)(b) screamed for § 87(2)(b) to come down from her apartment in § 87(2)(b). PO Bruce did not know § 87(2)(b) but believed she was a friend of § 87(2)(b). While PO Bruce was dealing with § 87(2)(b) she was separated from the other officers on the scene.

§ 87(2)(b) emerged from § 87(2)(b) and approached the officers yelling and screaming. She demanded to know why her son was in handcuffs and demanded to know where he was being taken. At that point the three suspects were being placed inside an RMP approximately thirty feet from where PO Bruce and § 87(2)(b) were standing. PO Bruce informed § 87(2)(b) that her son was being detained as part of a robbery investigation. § 87(2)(b) responded that her son would not be involved in something like that, and attempted to approach her son. PO Bruce told § 87(2)(b) that she needed to back up. § 87(2)(b) replied that PO Bruce was the one that needed to back up and attempted to push PO Bruce in the shoulder with one arm. PO Bruce deflected the push with her arms and moving back. § 87(2)(b) demanded to speak to PO Bruce's supervisor. PO Bruce pointed to Sgt. Daniel Houlihan and told § 87(2)(b) that he was the sergeant. § 87(2)(b) demanded again to speak to a supervisor, and PO Bruce again pointed out Sgt. Houlihan to her. § 87(2)(b) left PO Bruce and approached Sgt. Houlihan. PO Bruce did not push back § 87(2)(b) and did not threaten to arrest her. PO Bruce did not hear a request for her name or badge number by § 87(2)(b). PO Bruce also did not see § 87(2)(b) stumble or fall. The crowd in the courtyard was growing rapidly, with most of the inhabitants of § 87(2)(b) and § 87(2)(b) coming out into the courtyard. Additional units were called to the scene because the crowd was hostile and greatly outnumbered the police officers. PO Bruce's attention was turned to the crowd and she had no further interaction with § 87(2)(b).

### **PO Jonathan Rothenberg**

#### **Memo Book**

PO Rothenberg noted in his memo book that on November 10, 2008, at approximately 9:14 PM, he received a report of a robbery in progress in front of § 87(2)(b). The suspect was described as a black male, approximately § 87(2)(b), wearing a black "8-ball" jacket, black hat, jeans, grey and black sneakers in relation to SPRINT job number § 87(2)(b) by VIPER 85. At 9:30 PM, he issued a summons to § 87(2)(b). At 9:35 PM, three individuals were arrested in front of § 87(2)(b) by PO Kerbis.

### **CCRB Statement**

On April 16, 2009, PO Jonathan Rothenberg of PSA 2 was interviewed at the CCRB. PO Rothenberg is a § 87(2)(b)-old white male, who is 5'11" tall and weighs 200 pounds. He has brown hair and brown eyes.

On November 10, 2008, PO Rothenberg was assigned to Impact foot-post 447 at the Van Dyke Houses, working with PO Michael from 6:00 PM to 2:35 AM the next day.

At approximately 10:00 PM, PO Rothenberg and PO Michael received a radio run of a robbery in progress in front of § 87(2)(b) in Brooklyn. They were the first officers that responded. They observed a black male who matched the description of the suspect exactly, wearing a black “8-ball” jacket, black hat, jeans (identified by PO Rothenberg as § 87(2)(b) § 87(2)(b) PO Rothenberg was familiar with § 87(2)(b) because he had arrested him previously § 87(2)(b). § 87(2)(b) was sitting on a bench immediately in front of § 87(2)(b) in the courtyard between § 87(2)(b) and § 87(2)(b) with four or five other young males. These individuals appeared to be socializing and talking. PO Rothenberg received a report from central dispatch that the complainant who called 911 was standing in the lobby of a building and could see PO Rothenberg and PO Michael. The complainant confirmed that the individuals in front of PO Rothenberg were the individuals she was reporting. PO Rothenberg took the lead in approaching the individuals with PO Michael. § 87(2)(b) and his companions immediately reacted negatively towards PO Rothenberg and his partner. They stood up, flailed their arms and cursed. PO Rothenberg and his partner told the individuals to step back and attempted to keep the individuals at a distance. PO Rothenberg placed § 87(2)(b) in handcuffs. He did not physically resist, and PO Rothenberg stated that he was, “not out of control,” but was screaming out loud that he was being harassed. A crowd of civilians gathered, coming out from both buildings facing the courtyard. PO Rothenberg believed that almost everyone from those two buildings came out into the courtyard. The crowd gathered around the railing immediately in front of § 87(2)(b) and continued south towards the exit of the courtyard into § 87(2)(b). The crowd also congregated around the black metal fencing towards the center of the courtyard.

PO Rothenberg learned later that the interaction was being observed by VIPER through the cameras in the courtyard and that VIPER issued a call for additional units (10-85) on their behalf. PO Rothenberg and PO Michael were too busy to respond to their radios. PO Rothenberg believed their failure to respond led to the 10-85 being elevated to a call for assistance (10-13). Up to thirty officers began to arrive subsequently. These officers dealt with the crowd while PO Rothenberg controlled the suspects. Initially the crowd was close enough that they could almost reach and grab the officers and the suspects. PO Rothenberg led his suspect to a patrol car that had arrived. The suspect resisted by refusing to walk at a reasonable pace. PO Rothenberg said to him, “Come on you’re not making this any better for yourself.” PO Rothenberg did not see what the other officers were doing in order to control the crowd. PO Rothenberg did not observe any officers pushing the civilians back. The only interaction PO Rothenberg had with a civilian in the crowd was a request from an individual as to where the suspects were being taken. PO Rothenberg successfully placed § 87(2)(b) into a patrol car. PO Rothenberg did not recall who transported the suspects to the stationhouse. No robbery victim came forward or was identified, so no one was arrested for robbery. However, disorderly conduct summonses were issued.

PO Rothenberg did not see PO Tiffany Bruce during the incident. He also did not recall seeing any other female officers at the location. PO Rothenberg was shown a picture of § 87(2)(b). He did not recall her name, but stated that he believed she was § 87(2)(b) § 87(2)(b) aunt and has seen her in his previous interactions with § 87(2)(b). He did not see § 87(2)(b) during the incident.

### **PO Christopher Kerbis**

#### **Memo Book**

PO Kerbis noted in his memo book that at 9:30 PM, they responded to a robbery. At 9:35 PM, while attempting to arrest § 87(2)(b) § 87(2)(b) as a possible robbery suspect, § 87(2)(b) § 87(2)(b) attempted to interfere with the police officers by pushing and screaming, making it extremely difficult for officers to conduct their investigation. At 9:36 PM, three individuals transported back to PSA 2.

#### **CCRB Statement**

PO Kerbis is a § 87(2)(b)-old white male. He has brown hair and brown eyes. He has been a member of the NYPD since July of 2007. On November 10, 2008, PO Kerbis was Sgt. Daniel Houlahan's driver in RMP number § 87(2)(b). They worked in uniform from 5:50 PM to 2:47 AM the next day.

On April 7, 2009, PO Christopher Kerbis of PSA 2 was interviewed at the CCRB. § 87(2)(g)

PO Kerbis did not observe any officers pushing the crowd back from the arrested defendants. He was shown a photograph of § 87(2)(b). He did not recognize her nor did he recall seeing anyone that looked like § 87(2)(b) at the incident.

### **Officers not interviewed**

§ 87(2)(g), § 87(2)(b)

### **Medical Records**

The ambulance call report and triage form for § 87(2)(b) on § 87(2)(b), indicate that her chief complaint was, "I twisted my ankle yesterday." The medical records from § 87(2)(b) indicate that on § 87(2)(b) an x-ray scan was performed on § 87(2)(b)'s right ankle, which showed that she had a sprained ankle. § 87(2)(b)

### **Police Documents**

#### **Roll Call**

The roll call from PSA 2 on November 10, 2008, tour three indicates that PO Bruce was assigned to foot-post 447.

#### **Command Log**

The command log from PSA 2 on November 10, 2008 indicates that at 9:50 PM, § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) were arrested by PO Rothenberg and PO Kerbis § 87(2)(a) 160.50 § 87(2)(b) and § 87(2)(b) § 87(2)(b) were released with summonses, but § 87(2)(b) § 87(2)(b) was held for an outstanding warrant.

#### **SPRINT**

From SPRINT job number § 87(2)(b)

At 9:13 PM on November 10, 2008, § 87(2)(b) § 87(2)(b) called 911 to report a robbery at § 87(2)(b) § 87(2)(b). At 9:18 PM, housing foot post 447 arrived on scene. At 9:22 PM, housing RMP § 87(2)(b) arrived on scene. At 9:35 PM housing foot post 447 reports three under arrest. At 9:36 PM, housing RMP § 87(2)(b) reports impact sergeant transporting prisoners.

From SPRINT job number § 87(2)(b)

On November 10, 2008, at approximately 9:27 PM, § 87(2)(b) § 87(2)(b) called 911 to report that approximately 20 uniformed officers attempting to arrest several males at the park area of § 87(2)(b) § 87(2)(b) require assistance because two to three males being arrested were fighting back. Before disconnecting, she then stated that the officers appeared to have control of the situation.

#### **911 CD**

§ 87(2)(g)

§ 87(2)(b). Housing foot-post 447 met with § 87(2)(b) and requested the housing supervisor. An unidentified housing foot-post reported a 10-85 at § 87(2)(b). The Sgt. Houlahan immediately cancelled the 10-85. Viper 7 called dispatch to clarify description of robbery suspect. Stated there are two males with 8-ball jackets.

### **Closed Circuit Television Incident Report**

PO Harvey of PSA 2 reviewed tape number 255 from camera 211 which shows the front courtyard of § 87(2)(b) in Brooklyn at 9:14 pm on November 10, 2008. The tape did not record the reported robbery. Foot-post 447 and Impact Sergeant responded to the scene. There was no record of the interaction between § 87(2)(b) and PO Bruce.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### **Civilian CCRB History**

This is the first and only CCRB complaint filed by § 87(2)(b).

### **Officer CCRB History**

PO Bruce has not had any allegations substantiated against her.

### **Conclusions and Recommendations**

#### **Officer Identification**

§ 87(2)(g), § 87(2)(b)

#### **Disputed and Undisputed Facts**

§ 87(2)(g)

§ 87(2)(b) alleged that PO Bruce pushed her in the chest, threatened to arrest her and then refused to provide her shield number. PO Bruce stated that § 87(2)(b) attempted to push her, and that she did not threaten to arrest § 87(2)(b) nor did she hear a request for her badge number.

#### **Assessment of Evidence**

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) only stating that he saw § 87(2)(b) pushed by a female officer whom he did not describe any further. There were no other witnesses to the alleged misconduct.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) in his CCRB interview, PO Rothenberg was shown a photograph of § 87(2)(b) and identified her as § 87(2)(b) aunt, whom he had interacted with in his previous arrest of § 87(2)(b). PO Bruce also stated that § 87(2)(b) who was the mother of § 87(2)(b) and § 87(2)(b) § 87(2)(b) called § 87(2)(b) to the scene, § 87(2)(b), § 87(2)(g)

**Allegation A: PO Tiffany Bruce used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that PO Bruce pushed her in the chest, causing her to stumble and sprain her ankle.

§ 87(2)(b), § 87(2)(g)

**Allegation B: PO Tiffany Bruce threatened to arrest § 87(2)(b)**

**Allegation C: PO Tiffany Bruce refused to provide her name and/or shield number to § 87(2)(b)**

§ 87(2)(b)

§ 87(2)(b) alleged that PO Bruce threatened to arrest her, and then refuse to provide her shield number when § 87(2)(b) asked. PO Bruce denied threatening § 87(2)(b) with arrest or hearing a request for her shield number. There were no witnesses to these allegations. § 87(2)(b), § 87(2)(g)

Investigator:

Simon Wang

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: